

Merits. While the issue was not raised by either party, immunity regarding the Second Cause of Action for violation of the Confidentiality Medical Information Act, the Third Cause of Action for violation of the Elder Abuse and Dependent Adult Civil Protection Act, and the Seventh Cause of Action for disability discrimination and failure to provide reasonable accommodation was not raised by the County in its first demurrer.

CCP § 430.41(b) provides “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.”

“If the party against whom a complaint or cross-complaint has been filed fails to object to the pleading, either by demurrer or answer, that party is deemed to have waived the objection unless it is an objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading or an objection that the pleading does not state facts sufficient to constitute a cause of action.” CCP § 430.80(a).

Pursuant to CCP § 430.41(b), it is unclear whether the County may now be precluded from demurring on the grounds of immunity. The Court notes that there are two separate demurrers and a motion to strike currently set for hearing on August 24, 2026. In the interests of justice and judicial economy, the Court will continue this matter to **Monday, August 24, 2026, at 8:30 a.m. in Department 63**. The parties are to provide further briefing only regarding the applicability of CCP § 430.10(b) to the grounds of immunity, not to exceed 5 pages, filed no later than August 14, 2026. No further briefing on any other issue is permitted. **No appearance is necessary on today’s calendar.**

ROGHANI VS. AMERICAN HONDA MOTOR CO., INC.

CASE NUMBER: 24CV-0205967

Tentative Ruling on Motion to be Relieved as Counsel: Daniel Gopstein of Quill and Arrow, LLP moves to be relieved as counsel for Plaintiff Jasmine Kasmira Roghani. The motion is unopposed. The matter has not been properly noticed. CCP § 1005(b) requires a motion to be filed and served at least sixteen court days prior to the hearing. Plaintiff was served on July 22, 2026 by mail; less than sixteen court days prior to today’s hearing. Defendant was served on July 27, 2026 by email; less than sixteen court days prior to today’s hearing. The motion is denied for Counsel’s failure to timely serve the motion as required by CCP § 1005(b). Additionally, the Court notes that trial is scheduled for August 11, 2026. Accordingly, the Court has legitimate concerns about relieving counsel so close to the trial date. If Counsel were relieved, Plaintiff would have insufficient time to seek new counsel.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial. Given the pending trial date, the parties are encouraged to meet and confer about the trial date and whether a stipulation to continue may be in order.

Tentative Ruling on Motion to Reopen Discovery and Compel Deposition: Defendant American Honda Motor Co., Inc. moves for an order to reopen discovery, to compel the depositions of Plaintiff’s five designated experts and for monetary sanctions in the amount of \$2,524.00. In the alternative, Defendant seeks an order to exclude the experts’ testimony. Plaintiff has submitted an opposition that argues that the motion is now moot because Plaintiff has offered a deposition date for expert Darrell Blasjo. Plaintiff does not oppose the reopening of discovery for the Blasjo deposition. Plaintiff requests that the Court not impose sanctions based on this offer. The opposition does not address Defendant’s request to depose the other four designated experts.

Merits of Motion: CCP § 2024.050(a) permits a party to move to reopen discovery. The request to reopen discovery is unopposed. The Court finds good cause to reopen discovery for the sole purpose of obtaining the depositions of Plaintiff’s designated experts. The Court grants the request to reopen discovery.

While Plaintiff argues that the motion is now moot because they have offered a date for one of the experts, the Court finds that the motion is not moot. Plaintiff has not agreed to nor provided dates for the other experts. The Court finds that Defendant properly noticed the expert depositions. A review of the evidence shows that Defendant did not provide dates for the depositions in the meet and confer process. Accordingly, Defendant had no choice but to file the current motion. The Court will grant the request to compel the depositions of all five experts.

Finally, there is the issue of monetary sanctions. The Court may impose sanctions for a “misuse of the discovery process.” CCP § 2023.030. Misuses of discovery include failing to respond to authorized discovery and unsuccessfully opposing a motion to compel. CCP § 2023.030(d) and (h). The Court finds that Plaintiff failed to respond to authorized discovery and has unsuccessfully opposed the current motion. Additionally, the Court finds that there is no evidence that the imposition of sanctions would be unjust. The Court will order sanctions in the amount of \$2,524.00.

The motion is **GRANTED**. The depositions shall occur within seven days. Sanctions are imposed in the amount of \$2,524. The sanctions are payable within 30 days of service of the notice of entry of order. A proposed order was lodged with the Court which will be modified to conform to the Court’s ruling.

STATE OF CALIFORNIA, BY AND THROUGH THE CALIFORNIA DEPARTMENT OF FORESTRY AND FIRE PROTECTION VS. BORGNA

CASE NUMBER: 25CV-0208978

Tentative Ruling on Demurrer to First Amended Cross-Complaint: Plaintiff/Cross-Defendant State of California, by and through the California Department of Forestry and Fire Protection (“Cross-Defendant”) generally demurs to Defendant/Cross-Complainant Guiliano Borgna’s (“Cross-Complainant”) First Amended Cross-Complaint (“FACC”). Cross-Defendant alleges that the FACC fails to state sufficient facts to establish the causes of action for a prescriptive and implied easement. CCP § 430.10(e).

FACC Allegations: The FACC alleges that Cross-Complainant is the owner of real property (subject property) that is adjacent to the Pit River. Cross-Defendant is alleged to own an adjacent piece of real property (the Cal Fire property) which is also adjacent to the Pit River. Cross-Complainant claims a prescriptive easement to maintain a tributary on the Cal Fire property for the purpose of obtaining water from the Pit River that then flows to a pond on the subject property. The FACC alleges the two properties were once owned as single plot by the Hayes family. Finally, Cross-Complainant alleges he and his predecessors used the Cal Fire property in an actual, open, notorious, continuous and hostile manner for years possibly going back over 100 years.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

First Cause of Action (Prescriptive Easement): While the FACC’s first cause of action is titled “Easement Based on Adverse Possession” it is in fact a cause of action to quiet title to a prescriptive easement. The party claiming a prescriptive easement must prove use of the property, which was open, notorious, continuous, and adverse for an uninterrupted period of five years. *Warsaw v. Chicago Metallic Ceilings, Inc.* (1984) 35 Cal.3d 564, 570.

The FACC contains only conclusory allegations of open, notorious, continuous and adverse use. It does not